

## 24SMCV04726 24SMCV04726

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-05

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Case Number: 24SMCV04726 Hearing Date: August 5, 2026 Dept: M

CASE NAME: Arana v. Hotel MDR Marina Del Rey, A Doubeltree by Hilton,  
et al.

CASE NO.: 24SMCV04726

MOTION: Motion

to Compel Initial Discovery Responses

HEARING DATE: 8/5/2026

Legal

Standard

Where there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the inspection demand, no showing of "good cause" is required.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for

a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

Pursuant

to CCP section 2033.280(b), a party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010). "Failure to timely respond to RFA does not result in automatic admissions. Rather, the propounder of the RFA must 'move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction' under § 2033.010 et seq." (CCP, § 2033.280(b).) The court "shall" grant the motion to deem RFA admitted, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (CCP, § 2033.280(c).)

## ANALYSIS

Defendant Aimbridge

Hospitality LLC moves for an order compelling Plaintiff Maria Arana to provide code-compliant responses, without objection, to Defendant's Supplemental Requests for Production of Documents and Supplemental Interrogatories. Defendant also seeks monetary sanctions of \$1,510.00 per motion against Plaintiff.

Defendant demonstrates proper service of the subject discovery. On February 19, 2026, Defendant served Plaintiff via email with the Supplemental Interrogatories and Supplemental Requests for Production of Documents. (Warren Decl., Ex. B.) Plaintiff's responses to Defendant's discovery requests were due by March 23, 2026. (Id., ¶ 6.) Plaintiff has not provided verified responses. (Id., Exs. E, G.)

Plaintiff opposes the motion on the grounds that she is unable to verify the subject discovery responses because she has suffered from dementia for approximately seven years and her condition impairs her memory and her ability to understand and participate meaningfully in this

litigation. Plaintiff represents that she is in the process of securing a guardian ad litem ("GAL") with her daughter, Hilaria Uriarte Arana, who assists Plaintiff with her daily care, health care, financial matters, and legal affairs. Plaintiff provides no substantive evidence of such facts, but it is not disputed. The record suggests that Plaintiff has been impaired since the outset of the case in 2024, yet counsel has not secured a GAL with Plaintiff's daughter. Counsel does not explain why they have delayed applying for approval for a GAL.

Plaintiff must comply with her discovery obligations, including responding to the subject supplemental discovery requests. The Court is therefore inclined to compel the outstanding discovery once a GAL is secured who may verify the responses.

The Court finds that the imposition of sanctions would be unjust against a plaintiff suffering from dementia. However, sanctions are appropriate against Plaintiff's counsel for failing to diligently secure a GAL, but they were not noticed by Defendant. The Court is inclined to impose sanctions against Plaintiff's counsel of record in the noticed amount of \$1,510.00 per motion at an OSC. The Court considers the delay in securing a GAL to have caused the delay in responding to discovery, constituting discovery abuse under CCP section 2023.010(b), (d), (e), (f), (h). The Court will address the imposition of sanctions at the OSC. Counsel may provide a declaration concerning the efforts to secure a GAL, the apparent two year delay, and why sanctions should not be imposed for discovery abuse.

Accordingly, an OSC Re:

Appointment of Guardian Ad Litem and Why Sanctions Should not be Imposed against Plaintiff's Counsel is set for August 20, 2026, at 8:30 a.m. Any response to the OSC shall be filed by August 14, 2026. The hearing on the instant motion is continued to that same date/time.